

Bangladesh Studies

Government of Bangladesh

Article 01

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March 1, 2020

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1 Constitution

The concept of a constitution dates back to the city-states of ancient Greece. The philosopher Aristotle (384—322 B.C.), in his work *Politics*, analyzed over 150 Greek constitutions. He described a constitution as creating the frame upon which the government and laws of a society are built:

A constitution may be defined as an organization of offices in a state, by which the method of their distribution is fixed, the sovereign authority is determined, and the nature of the end to be pursued by the association and all its members is prescribed. Laws, as distinct from the frame of the constitution, are the rules by which the magistrates should exercise their powers, and should watch and check transgressors.

In modern Europe, written constitutions came into greater use during the eighteenth and nineteenth centuries. Constitutions such as that of the United States, created in 1787, were influenced by the ancient Greek models. During the twentieth century, an increasing number of countries around the world concluded that constitutions are a necessary part of democratic or republican government. Many thus adopted their own constitutions. In its ideal form, a constitution emanates from the consent and will of the people whom it governs. Besides establishing the institutions of government and the manner in which they function toward each other and toward the people, a constitution may also set forth the rights of the individual and a government's responsibility to honor those rights.

Constitutions, whether written or unwritten, typically function as an evolving body of legal custom and opinion. Their evolution generally involves changes in judicial interpretation or in themselves, the latter usually through a process called amendment. Amendment of a constitution is usually designed to be a difficult process in order to give the constitution greater stability. On the other hand, if a constitution is extremely difficult to amend, it might be too inflexible to survive over time.

In a truly constitutional form of government, public officials are subject to constitutional rules and provisions and may not violate them without punishment. Such constitutional governments are also called limited governments because the constitution restricts the scope of their power over the people. The constitution is a basic law or laws of a nation or a state which sets out how that state will be organized by deciding the powers and authorities of government between different political units, and by stating the basic law-making and structural principles of society. It is primary contract or law by which the government of a nation or state is set out and organized.

The Constitution of Bangladesh is the supreme law of Bangladesh, and any law that is inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect. So Constitution is the fundamental law of the state, containing the principles upon which the government is founded and regulating the divisions of the sovereign powers, directing to what persons each of these powers is to be confided and the manner it is to be exercised.

2 The Constitution of Bangladesh

The Constitution of Bangladesh is the supreme law of Bangladesh. It declares Bangladesh as a secular democratic republic where sovereignty belongs to the people; and lays down the framework defining fundamental political principles of the state and spells out the fundamental rights of citizens. Passed by the Constituent Assembly of Bangladesh on November 4, 1972, it came into effect from December 16, 1972, the day commemorated as Victory Day in the country, marking the defeat of the Pakistan Army in the Bangladesh Liberation War. The constitution proclaims nationalism, democracy, socialism and secularism as the

fundamental principles of the Bangladeshi republic. When adopted in 1972, it was one of the most liberal constitutions of the time.

3 Features of Constitution of Bangladesh -1972

The fundamental law of the state, containing the principles upon which the government is founded and regulating the divisions of the sovereign powers, directing to what persons each of these powers is to be confided and the manner it is to be exercised for example: Constitution of Bangladesh. Features of Bangladeshi Constitution-1972 are given bellow:

1. **Written Constitution:** The Constitution of the people Republic of Bangladesh is written document. It was formally adopted by the Constitution Assembly on a specific day 4th Nov. 1972. It contains 153 articles, 1 preamble & 4 schedules.
2. **Rigid Constitution:** The Constitution of Bangladesh is a rigid. An amended can be passed only by votes of two-thirds members in the total members of parliament.
3. **Preamble:** The constitution of Bangladesh starts with a preamble which is described as the guiding star of the Constitution. This Preamble contains the legal as well as moral basis of the Constitution. It also identifies the objectives and aims of the state.
4. **Supremacy of the Constitution:** The Constitution Supremacy has been ensured in the Constitution of Bangladesh. Article (7) provides that, this constitution is as the solemn expression of the will of the people, the supreme law of the Republic, and if any other law is inconsistent with this Constitution that other law shall, to the extent of the inconsistency, be void.
5. **Unitary Government System:** Article (1) of the Constitution provides that Bangladesh is a unitary people's republic. Unitary government means all power centralized under the constitution.
6. **Unicameral Legislature:** Article (65) of the Constitution provides Unicameral Legislature for Bangladesh. It is only one house, which known as "House of the Nation".
7. **Fundamental Principle of State Policy:** Article (8) of the Constitution provides for four major fundamental principle of state policy. a) Nationalism b) Democracy c) Socialism d) Secularism
8. **Fundamental Right:** Part 3 of the Constitution provides for 18 fundamental rights. The enjoyment and enforcement of those rights have been guaranteed in the Constitution. No authority can make any law which is inconsistent with the provisions of fundamental right and if any law made shall be void to the extent of inconsistency.
9. **Parliamentary form of Government:** The Constitution of Bangladesh provides for a Westminster type of parliamentary system. This form of government means

that the government is run by cabinet of Ministers headed by the Prime Minister. President becomes a titular head but real executive power is exercised by the cabinet.

10. **Independence of Judiciary:** The Constitution of 1972 ensured the independence of Judiciary. Firstly, Provision was made that the Chief Justice would be appointed by the President and other justice of the Supreme Court appointed after consultation with the Chief Justice. Appointment of subordinate judges and magistrates was also to be exercised with consultation of the Supreme Court. Secondly, a judge could not be removed from his office except by an order of the President passed to a resolution of parliament supported by a two-third members of the parliament. Again, the security of tenure of the subordinate judge was vested

4 Present Amended Constitution of Bangladesh

The method for conducting a state as well as the life style of the whole nation is reflected in a constitution. The constitution of Bangladesh was written and finally accepted on the 4th November, 1972 for conducting the state. It took effect from the 16 th December 1972. At a later stage at different times many amendments to the constitution were made. According to this amended constitution the state administration of Bangladesh is going on. The main characteristics of present amended constitution are as follows:-

1. The constitution is a written document.
2. "Bismillahir Rahmanir Rahim" is written in its preamble.
3. Some fundamental principles have been included for conducting the state.
4. There is a long list of Fundamental Rights in the constitution. These rights are indispensable for the development of personality and personal freedom. For the protection of these rights there is also guarantee in the constitution.
5. Universal Adult Franchise has been introduced.
6. Bangladesh has been declared a Republic.
7. Parliamentary democratic system has been introduced.
8. There will be Unitary Form of Government in the state.
9. The legislature will be unicameral. The name of the legislature is National Assembly.
10. The constitution is rigid (which cannot be changed easily)
11. The constitution is the Supreme Law of the country.

These are the main characteristics of the constitution. From these characteristics it is understood that the constitution of Bangladesh is a clear and excellent one.

5 Fundamental principles of state administration

The state has some basic principles on the basis of which it is going on. In the constitution of 1972 the state had four basic principles or pillars. These are Nationalism, Democracy, Secularism and Socialism. In 1977, these were changed and amended as follows:

1. Complete belief and trust in Almighty Allah.
2. Nationalism (nationalism was determined as Bangladeshi)
3. Democracy (democracy is the government of the people, by the people and for the people)
4. Socialism in the sense of economic and social justice (constitution as amended in 1998).

Fifth Amendment (2011) of constitution has changed to reflect constitution of 1972 and amended as follows:

1. Nationalism;
2. Democracy;
3. Secularism; and
4. Socialism

6 The President

The Head of the state of Bangladesh is the president. He is formal or Titular head. He is elected for a term of five years. The court has no jurisdiction over him. The national assembly can remove him from power by impeachment. No citizen of Bangladesh is fit for president ship if he is below 35 years of age and not fit to be a member of the Assembly. He must be such as was never removed from the post of the president earlier. The powers and functions of the president can be divided in six divisions. Such as 1. Executive function 2. Financial function 3. Emergency function and 4. Legislative function 5. Judicial function 6. Miscellaneous function

1. **Executive function** As the president is the constitutional head of the government, all the activities of the republic are conducted in his name. According to the advice of the Prime Minister he appoints other Ministers, Attorney General, Chief Justice of the Supreme Court, Ambassadors, three chiefs of the Armed Forces and others.

2. **Legislative function** The president can summon the National Assembly session. He can suspend it or dissolve it. He delivers speech in the Assembly. The bills accepted in the assembly are sent to the president for this consent.
3. **Financial function:** The recommendation of the President is necessary for any financial bill or claim for grant to submit to the Assembly.
4. **Judicial function:** The president has the power to pardon a convicted person from his sentence or he has the power to lessen the sentence.
5. **Emergency function:** If the security of the country is endangered for any reason or the economic life is disrupted, the president can declare emergency.
6. **Miscellaneous functions:** The president administers the oath of the ministers and the judges. He awards title to illustrious sons of the county for special contribution. He maintains communication with other states of the world. As a constitutional head the president is placed at the topmost position in the state.

7 The Prime Minister

The parliamentary democracy was re-established in Bangladesh through the twelfth amendment of the constitution. In this system all the executive powers are in the hand of the Prime Minister. He/she and his Ministers are the real administrator of the country.

Appointment and the status: The president appoints the leader of the majority party the Prime Minister. The Prime Minister is the center of administration. The formation of ministry and their functions are controlled and guided centering round him. **Prime Minister's Power and Functions:** As the head of the government the powers and functions performed by the Prime Minister are as follows.

1. **Executive Power:** The real Executive Powers of the government of the Republic of Bangladesh are in the hands of the Prime Minister and his Council of Ministers. The appointment of the ministers, high officials of the government, and all the functions of judicial and foreign affairs are guided by the advice and decision of the Prime Minister. In fact all the executive functions are performed by him/her.
2. **Legislative function:** Under his/her leadership the parliament creates laws of the country. The activities of the Assembly are guided centering round the Prime Minister.
3. **Financial function:** At the instance and advice of the Prime Minister the finance Minister prepares and places the yearly budget of income and expenditure.
4. **Leadership related function:** In the parliamentary system the leadership of the Prime Minister is recognized everywhere. The Prime Minister is the leader of the

majority political party in the Assembly. He is the leader of the legislature. In the assembly his position is unparalleled. The Prime Minister is the leader and chairman of the Council of Ministers. Centering round him/her the Council of Ministers are formed, guided and dissolved. The Prime Minister is the leader of the nation. She/he guides the programmes on national basis. The Post of Prime Minister in Bangladesh is very important. Centering round his/her the government, the country, and the nations are guided. Under his/her leadership the functions and development of the state are dependent.

8 The Legislature of Bangladesh

Jatiyo Sangshad: The parliament of Bangladesh is known as the House of Nation in which subject of constitution, shall be vested the legislative powers of the republic. Parliament consists of three hundred members elected accordance with law from single territorial constituencies. Jatiya Sangsad or National Assembly is the national parliament of Bangladesh. The current parliament of Bangladesh contains 345 seats including 45 women reserved seats distributed on elected party position in the parliament, the occupants of which are called Members of Parliament or MPs. The last 9th National Parliamentary Election was held on December 29, 2008 and, under normal conditions, elections are called every five years. The leader of the party (or alliance of parties) holding the majority of seats is the Prime Minister of Bangladesh, and so the head of the government. The President of Bangladesh, who is the ceremonial head of state, is chosen by Parliament.

Functions of Parliament: Parliament in a parliamentary form of government is a multi-functional organ of the state, but its functions are rarely defined in any Constitution or other document anywhere in the world. One has to read in between the lines of a Constitution to locate the specific functions of Parliament, if there exists a written Constitution. Parliament of Bangladesh is not an exception to this nearly universal phenomenon. This document restricts itself only to the following three functions of Jatiyo Shangshad: -

1. **Enactment of Legislation:** Legislation is the basic function of Bangladesh Jatiyo Shangshad. The Constitution of the Peoples Republic of Bangladesh has vested the legislative powers of the Republic to Parliament, subject to the provisions of the Constitution.
2. **Consent to taxation and control of public expenditure:** Parliament controls the purse of the nation. This authority is derived from the provisions of the Constitution to the following effect:
 - No tax shall be levied or collected except by, or under, the authority of an Act of Parliament.

- No money can be appropriated from the Consolidated Fund except by an Act of Parliament.

Tax proposals of the Government are submitted to Parliament generally in the form of the Finance Bill, introduced each year by the Finance Minister shortly after his budget speech.

3. **Ensuring accountability of the Government:** The Constitution states that the Cabinet shall be collectively responsible to Parliament. The Rules of Procedure of Parliament have prescribed a number of devices to make the Government answerable and accountable to Parliament.

9 The Judiciary System of Bangladesh

The present legal system of Bangladesh owes its origin mainly to 200-year British rule in Indian Sub-Continent. The Civil Courts Act, 1887 and the Criminal Procedure Code, 1898 as amended up to 2007 is the main legal basis of the present court structure particularly the subordinate judiciary in both civil and criminal side. The judiciary system of Bangladesh is composed of two divisions: The Supreme Court and the Subordinate Court.

The Supreme Court: In every country, there is a highest court to provide justice according to the rule of law. The highest court in Bangladesh, the Supreme Court was created by the order Article 94(I) of the constitution of the People Republic of Bangladesh. It consists of two divisions, namely the Appellate Divisions and the High Court Division. The functions of the two are distinct and the appointment of judges to each is separate.

1. **The Appellate Division:** The appellate division of Bangladesh is comprised of Chief Justice along with other most senior justices. The Chief Justice presides over this division. He is the administrative head of all the judges of Appellate and High Court Division. It has no original jurisdiction. The main function of Appellate Division is to discharge appeal case charged against the verdict of High Court Division. The decision of Appellate Division is final and all the citizens of Bangladesh are bound to obey its decision. The source of jurisdiction of the Appellate Division is two: the constitution and the ordinary law. However, an ordinary law can give the Appellate Division only appellate jurisdiction as stated in Article 103(4) of the constitution.
2. **The High Court Division:** There are two benches of High Court Division. One is Single Bench and the other one is Divisional Bench. Single Bench is consisted of one judge; Double Bench is consisted of more than one judge. Like the Appellate Division, the High Court division (HCD) has also two sources of powers and jurisdiction according to the Article 101, namely the Constitution and the ordinary law. Hence the jurisdiction of the High Court Division may be divided into two categories ordinary or general jurisdiction and Constitutional jurisdiction.

The Subordinate Court

- **The Court of District Judge:** The district judges court, headed by a district judge is immediately next in the hierarchy down from the High Court division. Subject to the superintendence of the High Court Division, the District Judge shall have administrative control over all the Civil Courts under the Civil Courts Acts 1887 within the local limits of his jurisdiction. The district court usually does not try original suits. It only tries certain cases like insolvency, probate and administration etc. It has the power to try, transfer, and withdraw any suit, appeal or other proceedings in any civil courts below the High Court Division.
- **The Magistrates Court:** There are two types of magistrate court: Judicial Magistrate and Executive Magistrate. There are also other types of magistracy like Special Magistracy and Justices of Peace. All Metropolitan Magistrate including the Chief Metropolitan Magistrate is subordinate to the Metropolitan Session Judge for the metropolitan area and all Judicial Magistrate including the Chief Judicial Magistrate is subordinate to the Session Judge for other area. There are also Additional Chief Metropolitan Magistrate and Additional Chief Judicial Magistrate together with First, Second and Third Class Magistrate.

The executive magistrates are appointed by the government as many persons as it thinks fit to be and one of them will be the District Magistrate. The government may also appoint an Executive Magistrate to be an Additional District Magistrate. The Executive Magistrate can be appointed from Bangladesh Civil Service (Administration) by the order of government. The Assistant Commissioner, Additional Deputy Commissioner, Upazilla Nirbahi Officer and Commissioner may be appointed.

- **Other Courts:** Apart from the above courts, there are some other courts available according to various laws and ordinances. These are mainly exercised for special situation and special case. The prominent among them are Labor Court, Labor Appellate Tribunal, Special Power Act, Special Tribunal, Children Act, Administrative Tribunal, Administrative Appellate Tribunal, Village Court, Marine Court, Family Court etc.

Reference: Bangladesh Studies by Hasebur Rahman